IN THE COMMONWEALTH COURT OF PENNSYLVANIA

No. 310 M.D. 2021

SENATOR JAY COSTA, SENATOR ANTHONY H. WILLIAMS, SENATOR VINCENT J. HUGHES, SENATOR STEVEN J. SANTARSIERO and SENATE DEMOCRATIC CAUCUS,
Petitioners,

v.

SENATOR JACOB CORMAN III, SENATE PRESIDENT PRO TEMPORE, SENATOR CRIS DUSH and SENATE SECRETARY-PARLIAMENTARIAN MEGAN MARTIN,
Respondents.

AMICUS BRIEF OF THE PUBLIC INTEREST LEGAL FOUNDATION IN OPPOSITION TO COUNT III OF THE PETITION FOR REVIEW

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TABLE OF CONTENTS

I. INTEREST OF AMICUS CURIAE 1

II. INTRODUCTION 2

III. ARGUMENT 4

A. Federal Law Requires Public Disclosure of All Voter List Maintenance Records and Preempts Inconsistent State Laws. 4

B. Commonwealth Law Demands Transparency in Voter Registration and Election Administration. 6

C. Title 4, Section 183.14(c)(3) of the Pennsylvania Administrative Code Does Not Regulate Intergovernmental Data Sharing. 8

D. The Pennsylvania Department of State Shares Voter Registration Data to Perform Election-Related Investigations. 9

E. It Is Department of State Policy to Disclose Voter ID Numbers to the Public. 12

F. Names, Addresses, Dates of Birth, and Voting Histories Are Public Information Under Commonwealth Law. 12

IV. CONCLUSION 13

TABLE OF AUTHORITIES

Cases

ACORN v. Edgar, 880 F. Supp. 1215 (N.D. Ill. 1995) 5

Arizona v. Inter Tribal Council of Arizona, 570 U.S. 1 (2013) 5

Bowling v. Office of Open Records, 990 A.2d 813 (Pa. Commw. Ct. 2010) 7

Elizabeth Blackwell Health Ctr. for Women v. Knoll, 61 F.3d 170 (3d Cir. 1995) 6

Foster v. Love, 522 U.S. 67 (1997) 5

Holk v. Snapple Beverage Corp., 575 F.3d 329 (3d Cir. 2009) 5

Ill. Conservative Union v. Illinois, 2021 U.S. Dist. LEXIS 102543 (N.D. Ill. June 1, 2021) 6

Project Vote, Inc. v. Kemp, 208 F. Supp. 3d 1320 (N.D. Ga. 2016) 7

Project Vote/Voting for Am., Inc. v. Long, 752 F. Supp. 2d 697 (E.D. Va. 2010) 6, 7

Project Vote/Voting for Am., Inc. v. Long, 813 F. Supp. 2d 738 (E.D. Va. 2011) 5

Project Vote/Voting for Am., Inc. v. Long, 682 F.3d 331 (4th Cir. 2012) 4

Pub. Interest Legal Found. v. Boockvar, 431 F. Supp. 3d 553 (M.D. Pa. 2019) 1, 5

Pub. Interest Legal Found., Inc. v. N.C. State Bd. of Elections, 996 F.3d 257 (4th Cir. 2021) 7

True the Vote v. Hosemann, 43 F. Supp. 3d 693 (S.D. Miss. 2014) 7

Constitutions, Statutes, Codes, and Rules

52 U.S.C. § 20507(i)(1) 3, 4

25 P.S. § 2648 7

25 P.S. § 3146.9 7

25 P.S. § 3150.17 7

25 Pa.C.S. § 1207(a) 7

25 Pa.C.S. § 1328(c)(1) 12

25 Pa.C.S. § 1328.1 12

25 Pa.C.S. § 1404(a) 12

25 Pa.C.S. § 1405(b) 6

4 Pa. Code § 183.1(a) 12

4 Pa. Code § 183.14 ..... 3, 6, 8, 11, 12

Pa.R.A.P. 531(a) 1

Pa.R.A.P. 531(b)(1)(i) 1

The Public Interest Legal Foundation ("Foundation") respectfully submits this brief as amicus curiae pursuant to Pa.R.A.P. 531(b)(1)(i) (merits briefing).

I. INTEREST OF AMICUS CURIAE

The Foundation is a non-partisan, 501(c)(3) public-interest organization that is dedicated entirely to promoting the integrity of elections nationwide through research, education, remedial programs, and, where necessary, litigation. The Foundation's mission includes protecting the fundamental right of citizens to vote and preserving the constitutional balance between states and the federal government regarding election administration procedures. The Foundation pursues its mission, in part, by using state and federal open records laws (e.g., the National Voter Registration Act of 1993) to study and analyze the voter list maintenance activities of state or local governments.

The Foundation has dedicated significant time and resources pursuing access to public records in the Commonwealth of Pennsylvania, and other jurisdictions throughout the United States. *See, e.g.*, *Pub. Interest Legal Found. v. Boockvar*, 431 F. Supp. 3d 553 (M.D. Pa. 2019). This matter involves access to records of the kind the Foundation often pursues and relies upon to carry out its mission. The Foundation is thus a non-party genuinely and significantly "interested in the questions involved" in this matter. Pa.R.A.P. 531(a).

The information and authorities presented in the Foundation's brief will very likely not be presented by the existing parties. The Foundation's brief will therefore aid the Court's resolution of this matter.

Mindful of the Court's limited judicial resources, the Foundation does not seek to intervene as a party or receive any oral argument time. Consideration of the Foundation's brief will thus not prejudice any party or delay resolution of this matter.

II. INTRODUCTION

The Pennsylvania Senate Intergovernmental Operations Committee's ("Committee") subpoena duces tecum issued to the Pennsylvania Department of State ("DOS") requests voter and election-related information, including voting data for registered voters in the Commonwealth of Pennsylvania, much of which is already publicly available. Nevertheless, Petitioners sued to stop its release, mischaracterizing the information requested as "private." Count III of the Petition for Review ("Petition") seeks an order declaring that the "voter information" the subpoena requests "is protected from disclosure under the Pennsylvania Election Code and DOS regulations." Petition at 51. Such an order would misstate and misconstrue both federal and state law. No person or entity other than the

Foundation and its counsel paid for the preparation of this brief or authored any part of this brief.

This brief addresses Petitioners' repeated claim that the information sought by the subpoena is "private." *See, e.g.*, Petition at 3. Petitioners rely on 4 Pa. Code § 183.14(c)(3), which limits which categories of data may not be made available for "public inspection." However, Respondents seek private data sharing between the Commonwealth's executive and legislative branches for the purpose of election-related research, which Section 183.14 does not address. Additionally, Petitioners wrongly claim that information regarding voters who hold certain jobs is automatically and wholly exempt from disclosure. In reality, the law provides certain individuals the ability to request to utilize an address other than their home address, for safety concerns. Regardless, much, if not all, of the data requested by the Committee is already a matter of public record under federal and Commonwealth law. *E.g.*, 52 U.S.C. § 20507(i)(1). Furthermore, recent and historical DOS practice undermines Petitioners' privacy concerns in these circumstances. When convenient, DOS willingly shares so-called "private voter information," including driver's license and partial Social Security numbers, with outside departments, and even private persons and out-of-state entities.

The Committee's efforts to examine the integrity of registration and voting data should be encouraged, not squelched. Data sharing, both public and private, is

vital to effective maintenance of official voter lists and the free and just administration of elections. "State officials labor under a duty of accountability to the public in ensuring that voter lists include eligible voters and exclude ineligible ones in the most accurate manner possible. Without such transparency, public confidence in the essential workings of democracy will suffer." *Project Vote/Voting for Am., Inc. v. Long*, 682 F.3d 331, 339 (4th Cir. 2012).

III. ARGUMENT

A. Federal Law Requires Public Disclosure of All Voter List Maintenance Records and Preempts Inconsistent State Laws.

It is federal policy that all state voter list maintenance records are public records. The National Voter Registration Act of 1993 ("NVRA") contains an open-records provision, which provides:

> "Each State shall maintain for at least 2 years and shall make available for public inspection and, where available, photocopying at a reasonable cost, all records concerning the implementation of programs and activities conducted for the purpose of ensuring the accuracy and currency of official lists of eligible voters[.]" 52 U.S.C. § 20507(i)(1) (emphasis added).

The NVRA narrowly exempts only two specific records from its broad disclosure mandate: (1) "records relate[d] to a declination to register to vote" and,

(2) records related "to the identity of a voter registration agency through which any particular voter is registered." *Id.*

In recent litigation involving the Foundation, the United States District Court for the Middle District of Pennsylvania addressed the interplay between the NVRA and state-law restrictions on disclosure of government records. *Pub. Interest Legal Found. v. Boockvar*, 431 F. Supp. 3d 553 (M.D. Pa. 2019). In that case, the Foundation sought, pursuant to the NVRA, various voter list maintenance records maintained by the Secretary of the Commonwealth. *Id.* at 555-57. The Secretary contended, in part, that Commonwealth law protected the requested records from disclosure. *Id.* at 561-62. The court disagreed.

> Finally, we need not consider whether the requested records are protected by Pennsylvania's Right-to-Know Law because PILF sought its records under the NVRA. To the extent Pennsylvania law conflicts with our interpretation of federal law, federal law controls. *Foster v. Love*, 522 U.S. 67, 69 (1997); *Holk v. Snapple Beverage Corp.*, 575 F.3d 329, 339 (3d Cir. 2009). *Id.* at 564 (emphasis added).

The Middle District's interpretation accords with precedent of the Supreme Court of the United States, *Arizona v. Inter Tribal Council of Arizona*, 570 U.S. 1, 15 (2013) (state laws must "give way" to NVRA under Elections Clause), and precedent of other lower federal courts, *ACORN v. Edgar*, 880 F. Supp. 1215, 1222 (N.D. Ill. 1995); *Project Vote/Voting for Am., Inc. v. Long*, 813 F. Supp. 2d 738,

743 (E.D. Va. 2011); *Ill. Conservative Union v. Illinois*, No. 20 C 5542, 2021 U.S. Dist. LEXIS 102543, at *16-20 (N.D. Ill. June 1, 2021) (holding that plaintiffs "plausibly alleged" a conflict between NVRA and Illinois law).

The NVRA, a federal law, thus supersedes any disclosure restriction, whether found in 4 Pa. Code § 183.14(c)(3) or another Commonwealth law. *Elizabeth Blackwell Health Ctr. for Women v. Knoll*, 61 F.3d 170, 178 (3d Cir. 1995) ("The Supremacy Clause requires invalidation of any state constitutional or statutory provision that conflicts with federal law[.]").

While some courts have permitted limited redaction of voter list maintenance records, *e.g.*, *Project Vote/Voting for Am., Inc. v. Long*, 752 F. Supp. 2d 697, 711 (E.D. Va. 2010) (allowing redaction of full Social Security numbers), such instances have concerned public disclosure, not the private, intergovernmental disclosure that is implicated here.

B. Commonwealth Law Demands Transparency in Voter Registration and Election Administration.

Although the Commonwealth maintains a robust and generally applicable Right to Know Law, the General Assembly singled out election-related records for specific and heightened transparency. For starters, despite the NVRA's existence, the Commonwealth adopted its own public disclosure law that allows physical inspection of "all" voter list maintenance records. 25 Pa.C.S. § 1405(b). The

Commonwealth also allows any qualified elector to physically inspect the "records of each county board of elections." 25 P.S. § 2648. Upon request, election officials must disclose the names, addresses, and certain application and ballot activity of all absentee and mail-in voters. 25 P.S. § 3146.9; 25 P.S. § 3150.17. Election officials must also allow physical inspection of the following specific records: "(1) Records of a registration commission and district registers. (2) Street lists. (3) Official voter registration applications. (4) Petitions and appeals. (5) Witness lists. (6) Accounts and contracts. (7) Reports." 25 Pa.C.S. § 1207(a).

Pennsylvania's Right to Know Law "is remedial legislation designed to promote access to official government information in order to prohibit secrets, scrutinize the actions of public officials, and make public officials accountable for their actions …." *Bowling v. Office of Open Records*, 990 A.2d 813, 824 (Pa. Commw. Ct. 2010). Other states' courts have reached the same conclusion about their own voter-list laws. *See Project Vote/Voting for Am., Inc. v. Long*, 752 F. Supp. 2d 697 (E.D. Va. 2010); *Pub. Interest Legal Found., Inc. v. N.C. State Bd. of Elections*, 996 F.3d 257 (4th Cir. 2021); *Project Vote, Inc. v. Kemp*, 208 F. Supp. 3d 1320 (N.D. Ga. 2016); *True the Vote v. Hosemann*, 43 F. Supp. 3d 693 (S.D. Miss. 2014).

Furthermore, DOS offers the entire statewide registered voter list for public sale, which includes all of the following voter data: voter ID number, name, sex,

date of birth, date registered, status (i.e., active or inactive), date status last changed, party, residential address, mailing address, polling place, date last voted, all districts in which the voter votes (i.e., congressional, legislative, school district, etc.), voter history, and date the voter's record was last changed. https://www.pavoterservices.pa.gov/Pages/PurchasePAFULLVoterExport.aspx (last accessed Sept. 28, 2021) (screenshot below); *see also* 25 Pa. Cons. Stat. Ann. § 1404; 4 Pa. Code § 183.14.

[Screenshot of the DOS "PA Full Voter Export" web page omitted from this transcription. Its text layer is not legible.]

The Pennsylvania General Assembly thus plainly intends that election records be transparent.

C. Title 4, Section 183.14(c)(3) of the Pennsylvania Administrative Code Does Not Regulate Intergovernmental Data Sharing.

Title 4, Section 183.14(c)(3) of the Pennsylvania Administrative Code provides, "The following items may not be made available for public inspection or photocopying … [t]he registrant's unique identifier, a registrant's or applicant's driver's license number and the last four digits of a registrant's or applicant's Social Security number." As the text reveals, this disclosure limitation applies to "public inspection or photocopying." *Id.* It thus does not regulate the subpoena, which seeks private disclosure of data between two branches of the

Commonwealth government. *See* Petition ¶ 108 (acknowledging public disclosure limitation).

D. The Pennsylvania Department of State Shares Voter Registration Data to Perform Election-Related Investigations.

Despite invoking "privacy" as a reason to refuse to answer the subpoena, DOS has willingly and freely shared voter registration data of the very kind the subpoena requests within and outside the Commonwealth's government.

According to sworn testimony given in Foundation litigation by the Commonwealth's Deputy Secretary for Elections and Commissions, "[i]n or around 2017, the Department of State discovered that a software error at the Department of Transportation may have allowed non-citizens to inadvertently register to vote when applying for or renewing a driver's license using the Motor Voter interface." Doc. 64-1 ¶ 17, *Pub. Interest Legal Found. v. Boockvar*, No. 1:19-cv-622 (M.D. Pa., filed May 3, 2021) (attached as Exhibit A). In response, "the Department of State worked with representatives from the Department of Transportation to conduct a high-level comparison of the SURE database against the driver license database for the purpose of identifying the number of registrants in the PennDOT database with specific tags indicating the driver's visitor, immigration or naturalization status, so-called 'INS indicators.'" Exhibit A ¶ 12. To perform the comparison, DOS "provided PennDOT with voter registration

records for the entire Commonwealth[.]" Doc. 66-1 at 176:2-4, *Pub. Interest Legal Found. v. Boockvar*, No. 1:19-cv-622 (M.D. Pa., filed May 3, 2021) (emphasis added).

[Deposition transcript pages (Exhibit A, pages 176 and 183-184) omitted from this transcription: they are images whose text layer is not legible.]

The Deputy Secretary's testimony indicates that data that Petitioners claim is private, "driver's license" and "last four of SSN," were shared with PennDOT.

Later, DOS performed a second analysis using voter registration data and motor vehicle records to determine if non-citizens had registered to vote. This second analysis was allegedly done in consultation with an unidentified "expert," who was not a DOS employee, but rather a "tenured Associate Professor of Political Science." Performance Audit Report at 162, Statewide Uniform Registry of Electors, Dec. 2019, available at https://www.paauditor.gov/Media/Default/Reports/Department%20of%20State_SURE%20Audit%20Report%2012-19-19.pdf (last accessed Sept. 28, 2021). In addition to working with PennDOT to correct the issue, DOS management stated that steps were taken to investigate and address the concern that non-citizens were registered to vote.

Pennsylvania also routinely shares so-called "private voter information" with an outside entity as part of its membership in the Electronic Registration Information Center ("ERIC"). ERIC "is a non-profit organization with the sole

mission of assisting states to improve the accuracy of America's voter rolls and increase access to voter registration for all eligible citizens." As a member of ERIC, DOS "submits at a minimum its voter registration and motor vehicle licensee data. The data includes names, addresses, date-of-birth, last four digits of the social security number." *Home*, ERIC, https://ericstates.org/; *FAQs, What Data Does ERIC Collect From Member States?*, ERIC, https://ericstates.org/ (emphasis added).

Because Petitioners complain about Respondents' alleged intent to retain a vendor with "unknown standards" to perform investigative work, Petition ¶ 50, it should be noted that the Commonwealth has agreed, through written agreement, to conceal all information received from ERIC unless disclosure is required by court order. *See* ERIC Membership Agreement at 4(a), https://ericstates.org/wp-content/uploads/2020/02/ERIC_Bylaws_01-2020.pdf (last accessed Sept. 27, 2021).

These instances demonstrate that DOS will, when convenient, share voter registration and voting data with others, both inside and outside Pennsylvania state government, and reinforces the conclusion that 4 Pa. Code § 183.14(c)(3) does not restrict DOS's ability to engage in non-public disclosure of driver's license and Social Security numbers.

E. It Is Department of State Policy to Disclose Voter ID Numbers to the Public.

Petitioners claim that Commonwealth regulations protect the "registrant's unique identifier," Petition ¶ 50, also does not accord with DOS practice. "Unique identifier" means "[t]he SURE registration number required by section 1222(c)(3) of the act (relating to SURE system)." 4 Pa. Code § 183.1(a). Each registrant is assigned a "unique identification number in the SURE system" at the time his or her application for voter registration is approved. 25 Pa.C.S. § 1328(c)(1). Each registrant has a single SURE registration number, and that number is never "changed, modified or altered." 25 Pa.C.S. § 1328.1. Based on this information, the Foundation reasonably believes that "unique identifier" and "voter ID number" are synonymous. DOS makes "voter ID number[s]" available to the public as part of the Full Voter Export list that is available for purchase. DOS has provided voter ID numbers to the Foundation on multiple occasions when the Foundation has purchased the Full Voter Export. *See* Section II.B (screenshot).

F. Names, Addresses, Dates of Birth, and Voting Histories Are Public Information Under Commonwealth Law.

Petitioners concede that names, addresses, dates of birth, and voting histories of all registered voters is a matter of public record in the Commonwealth. Petition ¶¶ 106-07 (citing 25 Pa.C.S. § 1404(a); 4 Pa. Code § 183.14). In fact, for just

twenty dollars, any member of the public can purchase the "Full Voter Export" list, which contains that information (and more) for every registered voter in the Commonwealth. As noted above, the Foundation has purchased that information on several occasions.

IV. CONCLUSION

Authority, precedent, and practice in the Commonwealth side with transparency in election administration. The type of intergovernmental data sharing Respondents propose is both lawful and vital to the just execution of elections and to voter confidence. An order quashing the subpoena risks contravening federal and state law. For these reasons, the Court should deny the relief sought in Count III of the Petition.

Dated: September 30, 2021

/s/ Linda A. Kerns, Esquire
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CERTIFICATE OF COMPLIANCE

I certify that this filing complies with the provisions of the Case Records Public Access Policy of the Unified Judicial System of Pennsylvania that require filing confidential information and documents differently than non-confidential information and documents.

I certify that this brief complies with the word count limit of Pa.R.A.P. 531(b)(3) (7,000 words during merits briefing).

/s/ Linda A. Kerns, Esquire
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PROOF OF SERVICE

I hereby certify that I electronically filed the foregoing document using the Court's electronic filing system, which will serve notice on all parties.

Dated: September 30, 2021.

/s/ Linda A. Kerns, Esquire
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